

OF TRUSTEES UNDER THE SETTLED LAND ACTS.

UNDER the Settled Land Act, 1882, fundamental changes have been introduced in dealing with and disposing of Settled Estates, the powers which under the old law were usually given to the trustees of the settlement, and in some cases much more extensive powers, having been conferred on tenants for life and other limited owners. With a view, probably, to the protection of the remaindermen (though such protection has not been satisfactorily provided for), a class of trustees has been called into existence whose duties arise under the Act; but these duties are, with a few exceptions, to which attention will be drawn, principally of a ministerial nature, and do not involve the exercise of discretion. In the present chapter we propose to treat of the position and duties of these trustees; but incidentally to this it will be necessary to refer to the principal provisions of the Act, and to glance at the important changes which have been introduced by it.

1. Trustees of the settlement. — The trustees for the purposes of the Settled Land Act may either be nominated by the settlement itself, or appointed by the Court; and sect. 2 of the Act of 1882, provides that “the persons, if any, who are for the time being, under a settlement (*a*), trustees with power of sale of settled land, or with power of consent to or

[(*a*) The term “settlement” includes any instrument, or any number of instruments, whether made before or after, or partly before and partly after the commencement of the Act, under which land, or any estate or interest in land, stands limited to or in trust for persons in succession; see sect. 2, sub-s. (1). It has, however, been held by Pearson, J., that where there is an original settlement

complete in itself, and derivative settlements have afterwards been made by persons who take interests which have not yet fallen into possession under the original settlement, the original settlement alone is the settlement for the purposes of the Act, *Re Knowles’ Settled Estates*, 27 Ch. D. 707; but this view seems hardly consistent with the language of the Act.